



File No.: EXP202311753

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on August 13, 2023. The complaint is directed against B.B.B. with NIF: ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant reports that:

“In the façade of the dwelling located at ‘***ADDRESS.1’, Málaga, there are 3 surveillance cameras that record pedestrians passing by on public roads, without the sign announcing the purpose of the data processing, the responsible party, or the existing means of opposition. This camera has recorded me during my stay in Málaga, and the property owner does not take responsibility, nor does he provide complaint forms or information.”

Along with the complaint, a photograph of the façade of a property (numbered as 55) is provided, in which two cameras and a sign from the company TYCO can be seen.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The action of forwarding and requesting information was notified to the respondent on September 26, 2023, by postal means – as recorded in the file – and in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

The respondent did not provide any response to this request.

THIRD: On November 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On September 9, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 22.1 of the LOPDGDD, classified under Article 83.5.b) of the GDPR.

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FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on 10/10/2024 as evidenced by the acknowledgment of receipt in the file.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following to be proven facts in this proceeding,

PROVEN FACTS

FIRST: There are two surveillance cameras whose orientation allows for excessive capture of public roads, obtaining personal data of third parties without a justified cause that permits it.

SECOND: The informational sign of the surveillance cameras only informs of the existence of a

monitored area, without clearly referencing what is required by data protection regulations.

THIRD: The responsible party is B.B.B. with NIF: ***NIF.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states: "The proceedings processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. In Article 4.2

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The GDPR defines the concept of "processing" of personal data as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction."

Images captured by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

III

Data Protection Regulations

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible area or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the event that the monitored space has several accesses, this distinctive sign of the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

In this case, an analysis was conducted of the content of the complaint submitted on August 13, 2023, by the complainant regarding "alleged irregularities" in the video surveillance system installed on the facade depicted in the provided photograph.

Upon analyzing the written complaint and the mentioned photograph, it is noted that two cameras are capturing images of the public road and therefore of pedestrians.

Furthermore, the informative sign does not comply with current regulations, as it can be inferred from the photograph that it is limited to informing about a monitored area.

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IV

Obligations regarding video surveillance

Likewise, the processing of images through a video surveillance system, in order to comply with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is foreseen in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of natural persons, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

In this case, it is observed that there is a breach of the obligation provided in Article 22 of the LOPDGDD, which establishes a "layered information" system, since the sign warning of the existence of the processing (video surveillance) is incomplete, as stated by the complainant, as it does not contain the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data, in order to make effective the affected party's right to the content of the so-called "second layer" of information regarding the processing of these recordings.

V

Classification and qualification of the infringement

As established in Article 83.5 of the GDPR regarding the general conditions for the imposition of administrative fines:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.
- b) the rights of the data subjects under Articles 12 to 22.”

In accordance with the available evidence, it is considered that the accused party has committed the following violations of the current regulations on data protection and video surveillance systems:

- Violation of the data minimization principle established in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”
- Violation of the data information duties established in Article 13 of the GDPR, in accordance with the provisions of Article 22 of the LOPDGDD.

For the purposes of the statute of limitations for the violations, the two alleged violations are subject to a three-year limitation period, pursuant to Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

“1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein and, in particular, the following: (...)

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679 (...)

b) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law (...).”

VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...).”

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Furthermore, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement.

After this period, it shall expire, and consequently, the file of actions shall be closed.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In this case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the violation of the infringed articles.

VII

Adoption of measures

The violations in this matter may lead to the imposition on the controller of the obligation to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each

supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

In this case, it is necessary to require the controller to notify this Agency within 1 month of the adoption of the following measures:

- Provide evidence of having removed the cameras or video cameras from the current location or reoriented them, so that the viewing of the images shows that public areas are not captured, except for those strictly necessary.
- Provide evidence of having placed the informative sign in a sufficiently visible location in the monitored area, completing the information provided therein: it must identify at least the existence of a processing operation, the identity of the controller, and the possibility of exercising the rights provided for in data protection regulations.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered

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as an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 22.1 of the LOPDGDD, classified under Article 83.5.b) of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1 to, pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, demonstrate compliance with:

- The removal of the cameras or video cameras from the current location or their reorientation, in such a way that the viewing of the images evidences that no areas of the public thoroughfare are captured, except for those strictly necessary.
- The placement of an informative sign in a sufficiently visible location of the monitored area, completing the information provided therein: it must identify at least the existence of a processing activity, the identity of the data controller, and the possibility of exercising the rights provided for in the data protection regulations.

THIRD: NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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